9. A High-Powered Committee chaired by the Prime Minister will recommend the selection of the Director of CBI.

10. It incorporates provisions for attachment and confiscation of property of public servants acquired by corrupt means, even while the prosecution is pending.

11. It lays down clear timelines. For preliminary enquiry, it is three months extendable by three months. For investigation, it is six months which may be extended by six months at a time. For trial, it is one year extendable by one year and to achieve this, special courts to be set up.

12. It enhances maximum punishment under the Prevention of Corruption Act from seven years to ten years. The minimum punishment under sections 7, 8, 9 and 12 of the Prevention of Corruption Act will now be three years, and the minimum punishment under section 15 (punishment for attempt) will now be two years.

13. Institutions which are financed fully or partly by Government are under the jurisdiction of Lokpal, but institutions aided by Government are excluded.

14. It provides adequate protection for honest and upright public servants.

15. Lokpal conferred with power to grant sanction for prosecution of public servants in place of the Government or competent authority.

16. It contains a number of provisions aimed at strengthening the CBI such as:

    1. setting up of a Directorate of Prosecution headed by a Director of Prosecution under the overall control of the Director of CBI;

    2. appointment of the Director of Prosecution on the recommendation of the CVC;

    3. maintenance of a panel of advocates by CBI other than Government advocates with the consent of the Lokpal for handling Lokpal-referred cases;

    4. transfer of officers of CBI investigating cases referred by Lokpal with the approval of Lokpal;

    5. provision of adequate funds to CBI for investigating cases referred by Lokpal.

17. All entities receiving donations from foreign source in the context of the Foreign Contribution Regulation Act (FCRA) in excess of `10 lakhs per year are brought under the jurisdiction of Lokpal.

18. It contains a mandate for setting up of the institution of Lokayukta through enactment of a law by the State Legislature within a period of 365 days from the date of commencement of this Act. Thus, the Act provides freedom to the states to decide upon the contours of the Lokayukta mechanism in their respective states.

 **Drawbacks**

The following are the drawbacks (shortcomings) of the Lokpal and Lokayuktas Act, 2013[4]:

1. Lokpal cannot suo motu proceed against any public servant.